

STATE OF NEW YORK

5202--A

2025-2026 Regular Sessions

IN SENATE

February 19, 2025

Introduced by Sen. SANDERS -- read twice and ordered printed, and when printed to be committed to the Committee on Cities 1 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general city law, in relation to requiring contractors in certain cities to recycle construction and demolition site waste

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent. The purpose of this act is to signif-
2 ically reduce the amount of waste produced by construction and demoli-
3 tion activities in cities having populations of one million or more.
4 There are many opportunities to reduce or recycle materials from
5 construction and demolition, including metals, cardboard, drywall,
6 glass, wood and asphalt. This act is consistent with the goals of large
7 cities' solid waste management plans, complementing other recycling and
8 recovery programs currently in effect.

9 § 2. The general city law is amended by adding a new section 23-a to
10 read as follows:

11 § 23-a. Construction and demolition site waste recycling; certain
12 cities. 1. Definitions. As used in this section:

13 a. "Contractor" means a general contractor and shall also include any
14 subcontractor engaged in the demolition or wrecking of a structure for
15 which a permit is required.

16 b. "Construction and demolition debris" shall include, but not be
17 limited to, metals, cardboard, drywall, glass, wood, concrete, brick and
18 asphalt, but shall not include any material that is contaminated by
19 lead, asbestos or any other hazardous material such that recycling ther-
20 eof would be illegal or unfeasible.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 c. "Recycler" means a recycling facility, transfer station or other
2 solid waste management facility permitted pursuant to the environmental
3 conservation law.

4 d. "Reuse" means (i) the on-site use of reprocessed construction and
5 demolition debris if the use of such debris is authorized by the city
6 department of buildings; and (ii) the off-site redistribution of a mate-
7 rial which would otherwise be disposed of, for use in the same or simi-
8 lar form as it was produced.

9 2. Applicability. a. The provisions of this section shall apply only
10 in cities having a population of one million or more.

11 b. Contractors shall recycle or reuse construction and demolition
12 debris produced on site as part of construction or demolition activities
13 by meeting the following requirements:

14 (1) on a project that is issued a permit with an application date
15 within one year of the effective date of this section, the contractor
16 shall cause to be recycled or reused at least twenty-five percent of the
17 construction and demolition debris, as measured by weight, produced on
18 site.

19 (2) on a project that is issued a permit with an application date a
20 year or more after the effective date of this section, the contractor
21 shall cause to be recycled or reused at least fifty percent of the
22 construction and demolition debris, as measured by weight, produced on
23 site.

24 c. The following projects shall be subject to the provisions of this
25 section:

26 (1) Construction of new residential buildings with four or more dwell-
27 ing units;

28 (2) Construction of new non-residential buildings, other than projects
29 for which the total area is four thousand square feet or less;

30 (3) Any rehabilitation of non-residential buildings of more than four
31 thousand square feet that will require a certificate of occupancy to be
32 issued from the city;

33 (4) Demolition of residential buildings with four or more dwelling
34 units that includes the demolition of at least one outside wall; and

35 (5) Demolition of non-residential buildings, other than projects for
36 which the total area is four thousand square feet or less.

37 d. A project shall be exempt from the provisions of this section if
38 only a plumbing permit or only an electrical permit is required for such
39 project.

40 3. Contractor responsibilities. a. Within thirty days of completion of
41 a project, the contractor shall submit documentation to report compli-
42 ance with this section and the regulations promulgated pursuant to this
43 section. If the contractor is unable to meet the recycling and reuse
44 requirements of this section, the contractor may apply for a waiver from
45 the city. Such documentation shall be in a form and manner determined by
46 the city department of buildings.

47 b. If a contractor is unable or refuses to submit the required
48 documentation, a property owner may submit a waiver application
49 supported by an affidavit that the contractor is unavailable or refuses
50 to provide the required documentation.

51 c. A contractor shall comply with all reasonable requests for informa-
52 tion and documentation by the city department of buildings pursuant to
53 an audit to monitor compliance with this section. Documentation
54 required by this section shall be maintained for at least three years.

55 4. City responsibilities. a. The city shall establish a procedure for
56 contractors to apply for waivers of the requirements of this section.

1 Such requirements shall include documentation of the amount of material
2 the contractor is actually able to recycle or reuse and the reason or
3 reasons for which the contractor cannot meet the recycling and reuse
4 requirements in this section.

5 b. The city shall not issue any new building or demolition permit to a
6 contractor who has failed to timely submit the required documentation
7 with respect to any completed project, until such contractor either
8 submits (1) the required documents including, where applicable, proof
9 that any fine due pursuant to subdivision five of this section has been
10 paid in full, or (2) proof of a waiver issued by the city and, the
11 payment of any fine due.

12 c. The city may withhold a certificate of occupancy for a project
13 until the contractor submits either the required documentation includ-
14 ing, where applicable, proof that any fine due pursuant to subdivision
15 five of this section has been paid in full; or proof of a waiver issued
16 by the city and, the payment of any fine due.

17 d. The city is authorized to conduct audits of contractors to deter-
18 mine and validate compliance with the requirements of this section. The
19 city may request information and documentation relevant to such an audit
20 from any contractor.

21 e. The city is authorized to promulgate such rules and regulations as
22 necessary to implement the provisions of this section. Such rules and
23 regulations shall contain provisions for seeking and obtaining a waiver
24 from the provisions of this section.

25 5. Fines and penalties. a. Contractors who fail to provide the
26 documentation required by this section or who have not received a waiver
27 from the city shall be subject to a fine of not more than five hundred
28 dollars for each day that they fail to provide the information or apply
29 for a waiver.

30 b. Contractors who fail to meet the recycling or reuse requirements of
31 this section and have applied for and not received a waiver from the
32 city shall be assessed a fine as follows:

33 (1) for projects involving ten thousand square feet or more of reno-
34 vated, newly constructed or demolished space, five hundred dollars for
35 each percentage point of difference between the amount required by this
36 section to be recycled or reused and the amount actually recycled or
37 reused; and

38 (2) for projects involving less than ten thousand square feet of reno-
39 vated, newly constructed or demolished space, two hundred fifty dollars
40 for each percentage point of difference between the amount required by
41 this section to be recycled or reused and the amount actually recycled
42 or reused.

43 § 3. This act shall take effect on the first of January next succeed-
44 ing the date on which it shall have become a law.